

Cured Petition for Review and Attached Board Order

Caption, parties, and agency

On February 12, 2025, A.R.M., through counsel, completes the petition tender first received the preceding day. The petition asks the United States Court of Appeals for the Fourth Circuit to review the Board's January 13 order in agency docket SYN-BIA-25-0113. It names A.R.M. as petitioner, the institutional Attorney General respondent, and the Board as the agency, and it continues to request vacatur and remand of the CAT disposition.

The clerk's February 11 notice identified only the missing order copy. This filing supplies that copy without changing the original caption, the parties seeking review, the agency, the order reference, or the relief requested. Counsel expressly preserves February 11 as the tender and receipt date. The February 12 submission completes the package; it is not offered as a newly commenced petition with a different filing history.

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Order copy and cure notice

Counsel responds to the February 11 deficiency notice by attaching the complete eight-page Board order. The attached pages begin with the Board's caption and January 13 disposition and end with its notice and signature page. No page of the order has been omitted, substituted, annotated, or presented as evidence arising after the agency proceedings. Copy stamps and appellate page labels identify the attachment's place in this court filing only.

The cure is filed and served on February 12, within the date fixed by the clerk. It addresses the precise defect stated in the notice and no other matter. Counsel asks the clerk to mark the petition package complete while retaining the February 11 receipt. Nothing in this cure concedes the respondent's position on CAT, record composition, or the legal effect of the statutory filing period.

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Requested relief and preserved questions

The petition asks the court to grant review, vacate the agency's CAT disposition, and remand for consideration of all supported risk pathways in combination. A.R.M. also contends that the agency did not meaningfully address complaint routing, official awareness, and nonintervention evidence when applying the acquiescence standard. Those contentions seek a reasoned agency analysis; they do not ask the court of appeals to decide credibility, probability, or official knowledge in the first instance.

A.R.M. further preserves the distinction between correcting an omission from the material already before the agency and adding evidence created after the Board order. No post-order declaration is attached to this petition. The petition relies on the agency proceedings and the attached final order, subject to later certification of the review record and any properly filed motion concerning its composition.

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Service and attachment index

Counsel certifies electronic service on the institutional respondent on February 12, 2025. The filing contains four petition-and-cure pages followed by Attachment A, the Board's eight-page January 13 order. The attachment index identifies those eight pages in their original order: decision overview, aggregate-risk discussion, Unit Four and contractor evidence, registry and relocation, official acquiescence, evidence consideration, disposition, and notice with signature.

Attachment A is supplied because the petition rules require a copy of the challenged agency order. It is not a second administrative decision and does not enlarge the evidentiary material considered by the Board. The copy may carry appellate presentation marks, but its substantive text remains the Board text served on January 13. Counsel requests acknowledgment that the identified filing defect is cured and the matter may proceed.

Board of Immigration Appeals order

Appeal dismissed January 13, 2025

The Board considers A.R.M.'s appeal from the October 22 CAT denial. The Board adopts the immigration judge's factual findings and dismisses the appeal. It agrees that A.R.M. credibly described a serious past encounter and that P-7 was admitted as part of the agency evidence.

The Board frames the dispute as whether the judge clearly erred in finding future torture and official acquiescence insufficiently likely. It affirms for the reasons below and orders removal to Kalyra subject to any lawful further review.

Aggregate-risk argument

A.R.M. argues that Unit Four, Harbor League, and registry pathways must be aggregated. The Board states that the immigration judge considered each asserted source and reasonably found no source independently likely to inflict torture. It adds that uncertain contacts among the sources do not change those individual findings.

The Board does not construct a combined pathway, identify overlapping steps, or determine the overall probability that any supported route leads to torture. It concludes that the separate source findings are sufficient to resolve the appeal.

Unit Four and contractor evidence

The Board notes the credited prior detention, elapsed time, lawful departure, absence of a current case document, and formal custody rules. It agrees that renewed Unit Four interest is possible but not shown more likely than not to result in qualifying harm.

It also agrees that the unidentified July speakers and vendor-contact overlap do not prove Harbor League control of officials. The order treats those contractor facts as a separate risk and does not address their asserted role in supplying information to Unit Four.

Registry and relocation

The Board accepts that registry systems can identify returnees and that unsupported queries exist in the expert sample. It finds no evidence of an A.R.M.-specific flag and no proof that every query reaches Merrow. It therefore affirms the finding that registry personnel do not independently pose the required probability of torture.

The Board also cites freedom of movement and the absence of proven nationwide Unit Four surveillance. It concludes that relocation evidence weighs against A.R.M. without further discussion of registered work, household links, or the liaison pathway.

Official acquiescence

The order states that Kalyrian law prohibits torture, provides an inspector hotline and external review desk, and reports discipline. It agrees that these safeguards weigh against official consent or acquiescence. It observes that A.R.M. did not use the national hotline after the municipal complaint.

The order mentions that the complaint reached the regional command but does not address Pel's testimony about the routing code, the absence of an independent interview, or the June 30 “regional response pending” status. It finds no direct senior-official approval and affirms.

Evidence-consideration challenge

The Board states that an adjudicator need not discuss every item of evidence. It finds no clear error in the weight assigned to Varo, Sore, S.M., or Pel and concludes that the decision adequately considered the record. The order does not analyze the source map, complaint sample, or file-specific routing beyond its brief references.

The Board declines to remand for further explanation. It also declines to make additional factual findings, relying on the immigration judge's treatment of the three sources and formal safeguards.

Disposition

The appeal is dismissed. The Board affirms the denial of withholding or deferral under the Convention Against Torture and leaves the conceded removal charge undisturbed. No new evidence was submitted to or considered by the Board.

This disposition is limited to the agency appeal. It does not determine any future court petition, record-certification question, or event after the agency evidentiary record closed. The order is served on both parties on January 13, 2025.

The Board leaves the admitted exhibit list unchanged and does not reopen the hearing. Its dismissal rests on the analysis stated in this order and the incorporated immigration-judge findings, not on an evidentiary default or a missing brief.

Notice and signature

The order advises that any petition for judicial review must comply with the governing statute and rules. The Board expresses no view about jurisdiction, claims processing, or the treatment of material not in the agency proceeding. The parties remain responsible for preserving the agency file and identifying any certification discrepancy through proper procedure.

A Board member signs the eight-page order on January 13, 2025. The order uses A.R.M.'s initials and omits unnecessary personal data.